

TENTATIVE RULINGS

DEPT CX102

Judge Layne H. Melzer

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the court's policy on the use of privately retained court reporters which can be found on the court's website at [Court Reporter Services | Superior Court of California | County of Orange](#).

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5302. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department CX102 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75, California Rule of Court (CRC) 3.672 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange](#) prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available on the website. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") contained on the Court's website will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS**9/17/2026****2:00 PM**

101	Fields vs. Irvine Eurocars, LLC 2023-01319978	Final Accounting Plaintiff Troy Fields's Final Accounting hearing is CONTINUED to January 14, 2027, at 2:00 p.m. in Department CX102 to confirm that the amount of the uncashed funds after the check-cashing deadline have been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees in accordance with the settlement agreement, that the administrator's work is complete, and that the Court's file thus may be closed. All supporting papers must be filed at least sixteen (16) court days before the continued hearing date. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff is ordered to give notice of this ruling to Defendant.
102	Vargas vs. Blue Line Foodservice Distribution, Inc. 2023-01328202	Final Accounting CONTINUED
103	Maldonado vs. Fast Auto Loans, Inc. 2019-01073154	1. Motion to Appear Pro Hac Vice 2. Status Conference Defendant Fast Auto Loans, Inc.'s application for pro hac vice admission of attorney Jenny N. Perkins is GRANTED . On or before the anniversary of the date of this order, if this attorney remains counsel for the moving party, the moving party must pay an annual renewal fee of five hundred dollars (\$500) for each year that the attorney maintains pro hac vice status in this case. (Gov. Code, § 70617, subd. (e)(2).) Moving party shall provide notice.

104	Kroening vs. Denny's Corporation 2026-01553742	Demurrer to Complaint and alternatively Motion to Strike Defendants Denny’s Corporation, Denny’s Inc., and DFO, LLC have filed a Demurrer and Alternative Motion to Strike Out-of-State Class Claims. (ROA #27.) For the reasons stated below, the Court OVERRULES the demurrer and DENIES WITHOUT PREJUDICE the alternative motion to strike. This is a putative nationwide class action for violation of the federal Fair and Accurate Credit Transactions Act (FACTA). More specifically, Plaintiff alleges that Defendants knowingly or recklessly failed to comply with FACTA by printing ten (10) digits (i.e., the first six (6) and the last four (4)) of consumers’ credit and debit card numbers on receipts in violation of subdivision (g) 15 U.S.C. section 1681c, which permits disclosure of only the last five (5) digits. (ROA #2 [Compl.], ¶¶ 2, 22.) Subdivision (g) of Section 1681c—i.e., the specific provision under which Plaintiff sues in this case, governing the “Truncation of credit card and debit card numbers”—was added by FACTA in 2003 to the existing Section 1681c, which forms a part of the Fair Credit Reporting Act (FCRA). Section 1681n, subdivision (a)(1)(A) provides, in relevant part, that for willful noncompliance, a defendant is liable to a consumer in amount that includes “any actual damages sustained by the consumer as a result of the failure or damages of not less than \$100 and not more than \$1,000.” 1. Demurrer Defendants demur to Plaintiff’s FACTA claim on the ground that Plaintiff lacks standing. Defendants essentially contend that under <i>Limon v. Circle K Stores, Inc.</i> (5th Dist., 2022) 84 Cal.App.5th 671 and <i>Muha v. Experian Information Solutions, Inc.</i> (4th Dist., Div. 3, 2024) 106 Cal.App.5th 199, California law requires Plaintiff to allege a “beneficial interest,” which is the equivalent of the federal Article III standing requirement that Plaintiff must have suffered an “injury in fact” that is “concrete” and “actual or imminent, not conjectural or hypothetical.” (See generally ROA #25 [Dem. P&A], pp. 1-2, 5-6.) Plaintiff opposes the demurrer by relying on <i>Askins v. CRST Expedited, Inc.</i> (1st Dist., Div. 3, 2026) 120 Cal.App.5th 1190, which declined to follow <i>Limon</i> and held that California’s standing requirements do not require a plaintiff to establish Article III-style concrete injury beyond the violation of statutory rights. (See generally ROA #40 [Opp.], pp. 1, 4-8.) In reply, Defendants acknowledge that <i>Askins</i> has created a split of authority in the Court of Appeal and urges this Court to follow <i>Limon</i> rather than <i>Askins</i>. (See generally ROA #42 [Reply], pp. 2-4.) When California Court of Appeal decisions are in conflict, “the court exercising inferior jurisdiction can and must make a choice between the conflicting decisions.” (<i>Auto Equity Sales, Inc. v. Super. Ct.</i> (1962) 57 Cal.2d 450, 456.) The Court has reviewed all three cited decisions and concludes that it will follow <i>Askins</i> as the better-reasoned decision.
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		“California courts . . . are not constrained by Article III’s case-or-controversy requirement” and that “California courts are guided by prudential considerations and generally require a plaintiff to have a personal interest to ensure that relevant facts and issues are adequately presented.” (<i>Askins, supra</i>, 120 Cal.App.5th at pp. 1198-1199, internal quotes omitted.) Under California standing rules, “[f]or causes of action based on statute, standing is a matter of statutory interpretation” and “is determined by the language of the statute itself along with the underlying legislative intent and statutory purpose.” (<i>Id.</i> at p. 1199, internal quotes omitted.) Importantly, “California’s approach to standing does not vary depending on whether it is considering a state or federal statute.” (<i>Id.</i>) “[I]n interpreting a statute . . . to determine the Legislature’s intent so as to effectuate the law’s purpose,” courts “first examine the statutory language, giving it a plain and commonsense meaning. If the language is clear, courts must generally follow its plain meaning unless a literal interpretation would result in absurd consequences the Legislature did not intend. If the statutory language permits more than one reasonable interpretation, courts may consider other aids, such as the statute’s purpose, legislative history, and public policy.” (<i>Id.</i> at p. 1201, internal quotes & citations omitted.) The Court agrees with the <i>Askins</i> court’s interpretation of the plain language of Section 1681n to conclude it “demonstrates that Congress authorized recovery of statutory damages for failure to comply with the FCRA even absent proof of harm.” (<i>Id.</i> at p. 1203.) The Court notes that not only is this interpretation consistent with the weight of “federal appellate courts across multiple circuits [that] have concluded that the FCRA allows for a recovery without proof of actual damages,” but also the Ninth Circuit has so concluded even after <i>Spokeo, Inc. v. Robins</i> (2016) 578 U.S. 330, 333. (<i>Robins v. Spokeo, Inc.</i> (9th Cir. 2017) 867 F.3d 1108, 1110-1111, emphasis added [“The statute gives consumers . . . the right to sue (and to recover statutory damages) for willful violations <i>even if the consumer cannot show that the violation caused him to sustain any actual damages</i>”].) Contrary to Defendants’ contention, the <i>Askins</i> court did not ignore the second meaning of “nominal damages where an injury exists but is insubstantial” (Reply at p. 3.); in fact, the <i>Askins</i> court specifically stated: “Applying that principle here, Congress’s decision to use the phrase ‘damages’ and deliberately omit the limiting language attached to ‘actual damages’ indicates a broader intent, i.e., to allow recovery of damages ‘where there is <i>no substantial loss or injury to be compensated</i>, but still the law <i>recognizes a technical invasion of [a plaintiff’s] rights</i>’” (<i>Askins, supra</i>, 120 Cal.App.5th at p. 1202, brackets original, emphases added). Further, the Court agrees with the <i>Askins</i> court’s criticisms of <i>Limon</i> in declining to follow it. (<i>Id.</i> at pp. 1205-1206.) Moreover, although the plain language of Section 1681n is clear, the <i>Askins</i> court nevertheless considered the purposes of the FCRA in reaching its decision. (See <i>id.</i> at pp. 1200, 1206.) The <i>Askins</i> court also specifically noted that one such key purpose is to “protect[] privacy” rights of consumers. (<i>Id.</i> at p. 1206.) Therefore,
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there is also no merit to Defendants’ argument that the *Askins* “opinion does not discuss Congress’s purpose in enacting the FCRA.” (Reply at p. 2.) Defendants also contend that FACTA’s or the FCRA’s purpose was to ““ensure that consumers suffering from any actual harm to their credit or identity are protected while simultaneously limiting abusive lawsuits.”” (Dem. P&A at p. 1.) However, that quote comes from the Credit and Debit Card Receipt Clarification Act, which was passed to clarify that printing an expiration date on a receipt but otherwise complied with the card number truncation requirements did not constitute willful noncompliance. Given that the Clarification Act’s provisions are not at issue here, the Clarification Act’s purpose as cited by Defendants is irrelevant here.

In short, as the court concluded in *Askins*, because Section 1681n does not require proof of actual harm to recover statutory damages, Plaintiff “need not demonstrate any injury beyond the violation of his statutory rights under the FCRA” to establish standing under California law, as “[t]he statutory violation itself supplies the concrete interest necessary to maintain the action.” (*Askins, supra*, 120 Cal.App.5th at p. 1205.)

Therefore, Defendants’ demurrer based on standing grounds is **OVERRULED**.

2. Alternative Motion to Strike

Defendants also alternatively seek an order, pursuant to Rules of Court (CRC), rule 3.767(a)(3), striking the complaint’s class claims in ¶¶ 92-97 to the extent these paragraphs seek to encompass putative class members who are either located outside California and/or who obtained receipts at Denny’s locations outside California.

First, Defendants contend that their motion to strike should be granted because non-California residents patronizing non-California Denny’s locations should not be subject to California standing requirements because if they had brought their own individual claims against Defendants, these non-California plaintiffs would have been subject to federal Article III standing requirements or the standing requirements of their individual states—but not California standing requirements. (Dem. P&A at p. 9.) Defendants cite no authority in support of this contention.

In opposition, Plaintiff cites *In re Tobacco II Cases* (2009) 46 Cal.4th 298, 319 for the proposition that “[g]enerally standing in a class action is assessed solely with respect to class representatives, not unnamed members of the class.” (Opp. at p. 11; see also *In re Tobacco II Cases, supra*, at p. 321 [noting that “accepted principles of class action procedure that treat the issue of standing as referring only to the class representative and not the absent class members”].) But Defendants do not address *Tobacco II Cases* or this argument in their reply. Therefore, Defendants may be deemed to have conceded this point. (*DuPont Merck Pharmaceutical Co. v. Super. Ct.* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, [the parties] concede this issue”].)

Second, Defendants contend that their motion to strike should be granted because this Court lacks personal jurisdiction over the non-California residents’ claims against Defendants, who are non-California residents. In short, Defendants seek to apply personal jurisdiction requirements to non-named putative class members. In support, Defendants primarily rely on three cases: (1) *Snowney v. Harrah’s*

		<i>Entertainment, Inc.</i> (2005) 35 Cal.4th 1054; (2) <i>LG Chem, Ltd. v. Superior Court</i> (2022) 80 Cal.App.5th 348; and (3) <i>Bristol-Myers Squibb Co. v. Superior Court</i> (2017) 582 U.S. 255. However, none of these cases addressed whether, in a putative nationwide class action, the Court must have personal jurisdiction over the claims of every unnamed class member against Defendants. Defendants have cited no relevant binding authority on this issue. The majority of federal courts that have considered whether to extend <i>Bristol-Myers</i>’s holding in the mass tort context to the class action context have declined to do so. (See, e.g., <i>Fischer v. Federal Express Corp.</i> (3d Cir. 2022) 42 F.4th, 366, 375; <i>Lyngaas v. Curaden AG</i> (6th Cir. 2021) 992 F.3d 412, 435; <i>Mussat v. IQVIA, Inc.</i> (7th Cir. 2020) 953 F.3d 441, 447; <i>Burchfield v. Prestige Consumer Healthcare, Inc.</i> (C.D.Cal. 2021) 534 F.Supp.3d 1192, 1208; <i>Sotomayor v. Bank of America, N.A.</i> (C.D. Cal. 2019) 377 F.Supp.3d 1034, 1036, 1038.) The Court therefore follows the weight of these authorities and DENIES Defendants’ motion to strike class allegations. Given the lack of binding authority on this issue, the Court’s denial of the motion to strike at this time is WITHOUT PREJUDICE to Defendants raising the issue again at a later, appropriate time. Plaintiff to give notice.
105	Southern California Edison Company vs. California State Board of Equalization 2025-01534286	Motion for Leave to Intervene The City of Fontana’s motion to intervene is GRANTED. The Court finds that the City’s intervention is mandatory under Code of Civil Procedure (CCP) section 387, subdivision (d)(1)(A) because Revenue and Tax Code section 5184, which governs the sole cause of action alleged by Plaintiff in this case, confers an unconditional right upon the City to intervene. (Rev. & Tax Code, § 5148 [“Any city receiving notice of the action filed against the board and the county may, within 30 days of the receipt of that notice, intervene in that action”].) The City is ORDERED to separately file its proposed answer with the Court and serve all parties within 5 court days. The answer must be filed as a separate document to ensure it is properly indexed in the record. The City shall give notice of this ruling.

106	Alarcon vs. Akash Management LLC 2024-01378974	Case Management Conference CONTINUED
107	Alarcon vs. Akash Management LLC 2023-01365842	Case Management Conference CONTINUED
108	Mihailovic vs. Between The Sheets, Inc. 2024-01439140	Motion for Final Approval of Class Settlement Plaintiff Anna Mihailovic’s Motion for Final Approval of Class Action Settlement is CONTINUED to November 19, 2026, at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action. On 11/12/2024, Plaintiff Anna Mihailovic, individually and on behalf of all others similarly situated, filed a class action complaint against Defendants Between the Sheets, Inc. and BTS (NB), Inc, alleging various Labor Code wage-and-hour violations. (ROA # 2.) Defendants each answered on 12/18/2024. (ROA #13, 14.) On 11/4/2025, Plaintiff filed the Motion for Preliminary Approval of the Class Action Settlement, and submitted the Class Action Settlement Agreement and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class claims for the non-reversionary gross settlement amount (GSA) of \$192,500. On 3/5/2026, the Court continued the first hearing on the motion and asked Class Counsel to address a few issues. Counsel has submitted supplemental materials, including an amended version of the settlement agreement (“Amended Settlement Agreement”) and an amended Class Notice. On 11/14/2025, Plaintiff filed the Motion for Preliminary Approval of Class Action Settlement. (ROA #51.) On 5/28/2026, at the second hearing on the

matter, the Court granted the motion. (ROA #69.) On 6/15/2026, the Court entered the order granting the motion. (ROA #75.)

On 8/21/2026, Plaintiff filed the instant Motion for Final Approval of Class Action and PAGA Settlement. (ROA #88.) The motion seeks approval of the amended version of the parties' Class Action Settlement Agreement ("Settlement Agreement"), which provides for the settlement of Plaintiff's class claims for the non-reversionary gross settlement amount ("GSA") of \$192,500. (ROA #86, Exh. 1.)

The Court has identified the following issues with the moving papers, which must be addressed by Class Counsel before final approval can be granted:

1. The administrator's late-filed supplemental declaration attests to receipt of one (1) opt-out request, but did not provide the name of the Class Member opting out.
2. The administrator's submitted declaration also fails to address whether any workweek disputes were submitted and, if so, how they were resolved.
3. Class Counsel has failed to submit evidence to support the attorneys' fee request in the form of time records or a summary of time spent on the substantive tasks, in order to enable the Court to evaluate the lodestar and fees claimed. Counsel's declaration should also state whether the time records were kept and created contemporaneously or otherwise. The Court also reminds counsel that the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances.
4. Class Counsel has also failed to attest as to whether there is a fee-splitting agreement with any other counsel, or confirm there is none.
5. The Settlement Agreement defines "Administration Expenses Payment" as "the amount the Administrator will be paid from the Gross Settlement Amount to reimburse its reasonable fees and expenses in accordance with the Administrator's 'not to exceed' bid submitted to the Court in connection with Preliminary Approval of the Settlement." (ROA #86, Exh. 1, ¶ 1.3.) The Settlement Agreement also specifies that the "Administrator Expenses Payment not to exceed \$4,550.00 except for a showing of good cause and as approved by the Court." (*Id.* at ¶ 3.2.3.) In support of preliminary approval, administrator submitted a declaration attesting that "ILYM Group's fees are charged: hourly, fixed & per person. No additional charges will be incurred unless the class size increases, or additional services are requested. ILYM Group's fees associated with the administration of this settlement are: \$4,550.00." (ROA #52, ¶ 10.) Administrator also attached a quote with estimated fees & expenses of \$4,550.00. (*Id.* at Exh. C.) Now, in support of final approval, administrator's declaration attests that "ILYM Group's total fees and costs for services in connection with the administration of this Settlement, which includes fees and costs incurred to-date, as well as anticipated fees and costs for completion of the settlement administration, are \$5,850.00." (ROA #84, ¶ 14.) Yet the moving papers do not provide any explanation for the \$1,300 increase in costs or services. Nor was a new invoice provided. Class Counsel and administrator must explain this discrepancy and why Plaintiff is requesting that the Administrator Expense Payment exceed the \$4,550 provided in the settlement agreement.

Class Counsel must also provide a revised [Proposed] Order of Final Approval and Judgment with the following revisions:

1. The proposed order and judgment should identify the Settlement Agreement by its full name.
2. The proposed order and judgment should reference by name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
3. The proposed order and judgment must be updated to identify by name the one (1) Class Member who opted out and thus will not be bound by the judgment.
4. The proposed order and judgment should also address whether any class members submitted workweek disputes, and if so, how those disputes were resolved.
5. The proposed order and judgment should state that the settlement administrator will post a copy of the order and judgment on the website for 180 days.
6. Counsel should not leave blank but should instead propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the Settlement Agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to class members and all others in accordance with the Settlement Agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date.
7. The proposed order and judgment should state that the settlement administrator's final report should be filed at least 16 court days, not 5 court days, before the Final Accounting hearing.

The Court further refers Class Counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at <https://voypubapps.occourts.org/complex-civil-calendar>.

Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. If supplemental papers addressing all of the Court's concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

Plaintiff is ordered to give notice of this ruling.

109	Simma vs. Biosense Webster, Inc. 2023-01342539	Motion for Final Approval of Class/PAGA Settlement Plaintiffs Daraphone Simma and Wendy Santos’s Motion for Final Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending the resolution of the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 8/15/2023, Plaintiff Daraphone Simma, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant Biosense Webster, Inc. (ROA #2.) On 1/2/2024, Plaintiff Simma filed a first amended complaint (FAC). (ROA #20.) On 2/13/2024, Defendant answered the FAC. (ROA #35.) The operative complaint in this case is the second amended complaint, filed on 11/14/2024 pursuant to the parties’ stipulation and the court’s order, which adds Wendy Santos as a named plaintiff and alleges 10 causes of action, including various Labor Code wage-and-hour violations, unfair business practices, claims for PAGA penalties. (ROA #59.) On 8/7/2025, Plaintiffs filed the Motion for Preliminary Approval of Class Action and PAGA Settlement. (ROA #100.) On 5/7/2026, at the 2nd hearing on the matter, the Court granted the motion. (ROA #142.) On 5/26/2026, the Court entered the order granting the motion. (ROA #148.) On 8/21/2026, Plaintiffs filed the instant Motion for Final Approval of Class Action and PAGA Settlement. (ROA #159.) The motion seeks approval of the First Amended Class Action and PAGA Settlement Agreement (“Settlement Agreement”), which provides for the settlement of Plaintiffs’ class and PAGA claims for the non-reversionary gross settlement amount (“GSA”) of \$1,800,000. The GSA includes \$40,000 allocated for PAGA penalties. The Class is comprised of 451 Class Members, defined as “all individuals who are or previously were employed by Defendant in California and classified as a non-exempt employee at any time during the Class Period.” The Class Period is 8/15/2019 through 8/31/2025. The settlement also includes 338 Aggrieved Employees, defined as “all individuals who are or previously were employed by Defendant in California and classified as a non-exempt employee at any time during the PAGA Period.” The PAGA Period is 7/25/2022 through 8/31/2025. The settlement administrator, ILYM Group, Inc., reports as follows: - On 6/10/2026, the administrator sent class notices via U.S. Mail to 450 Class Members, including Aggrieved Employees. Later, the administrator also sent a class notice to an additional 451st self-identified class member, whom the parties approved after meeting and conferring. - As of 8/20/2026: - One (1) class notice was returned to the administrator as undeliverable after skip tracing.
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		○ One (1) request for exclusion were received from Benigno Lopez, who will not be bound by the settlement and judgment. ○ Zero (0) objections were received. ○ One (1) workweek dispute was received and resolved. Therefore, 99.8% of the Class is participating in the settlement. The Court concludes that the \$1,800,000 settlement is fair, adequate, and reasonable, and in the best interests of the Class Members. The Court also concludes that the notice to the Class was adequate. The Court also certifies the defined Class for settlement purposes only. The Court concludes that an attorneys' fee award totaling \$540,000 or 30% of the GSA, constituting a 2.01 multiplier against the anticipated final lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action's contingent nature and the results achieved. The Court further concludes that a Class Representative Service Payment of \$5,000 per named Plaintiff, for a total of \$10,000, is fair, adequate, and reasonable for a class and settlement of this size, considering that there was nothing extraordinary about Plaintiffs' contribution to the case. The Court has identified the following minor issue with the moving papers, which must be addressed by Class Counsel before the Court will sign the Order Granting Final Approval and Judgment: 1. Counsel's declaration fails to attest as to whether there are any fee-splitting agreements with any other counsel. This issue must be addressed by Class Counsel within five (5) court days of this ruling. Upon resolution of this issue, and assuming no additional issues arise based upon Class Counsel's supplemental declaration, the Court will grant the instant motion and approve the following specific awards and disbursements from the GSA: • Attorneys' fees totaling \$540,000.00 awarded to Class Counsel; • Litigation costs totaling \$17,292.53 awarded to Class Counsel; • Settlement administration costs of \$7,500.00 awarded to ILYM Group, Inc.; • Class Representative Service Payments of \$10,000 total, with \$5,000 awarded to Plaintiff Daraphone Simma and \$5,000 awarded to Plaintiff Wendy Santos; and • \$30,000 remitted to the Labor and Workforce Development Agency (LWDA) for its share of the PAGA penalties. The Net Settlement Amount payable to all Class Members is \$1,195,207.47, including the \$10,000 in PAGA penalties to be distributed to the Aggrieved Employees, in accordance with the terms of the Settlement Agreement. Pursuant to the Settlement Agreement, Defendant is ordered to separately pay all employer payroll taxes owed on the wage portions of the individual settlement payments.
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		Within five (5) court days, Class Counsel must submit a revised Proposed Order of Final Approval and Judgment with the following revisions: 1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. 2. The proposed order and judgment should reference by name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto are attached. 3. In addition to stating the class definition, period, and size, the proposed order and judgment should also include such information for PAGA aggrieved employees. 4. The proposed order and judgment should also state that no class members submitted workweek disputes. 5. The proposed order and judgment must state that one class member submitted a workweek dispute and that the dispute was resolved. 6. The proposed order and judgment should state that the settlement administrator will post a copy of the order and judgment on the website for 180 days. 7. Counsel should not leave blank but should instead propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the Settlement Agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to class members and all others in accordance with the Settlement Agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date. Final Accounting will be set in accordance with the Court's Order of Final Approval and Judgment after Class Counsel proposes a realistic date. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiffs are ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.
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110	Lopez vs. CH Robinson Company, Inc. 2022-01259258	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that with minor exceptions, they adequately address the previously identified issues. Accordingly, Plaintiff Javier Lopez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending submissions of a further declaration by counsel attesting to the details of the concurrently pending case that may be impacted by this settlement. This is a putative class action and PAGA matter involving alleged Labor Code violations and unfair business practices. On 5/12/2022, Plaintiff Javier Lopez, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant CH Robinson Company, Inc. (ROA #2.) On 7/13/2022, Defendant answered. (ROA #17.) On 9/9/2022, the Court took notice that Plaintiff’s separate PAGA action is a related case—i.e., Plaintiff’s separate PAGA action against the same Defendant: <i>Lopez vs. CH Robinson Company, Inc.</i>, Case No. 30-2022-01273893. (ROA #23.) On 10/19/2022, Defendant filed a motion to compel arbitration. (ROA #36.) On 1/20/2023, the Court partially granted the motion and compelled Plaintiff’s individual claim for waiting time penalties under Labor Code section 203 to arbitration, but stayed the remaining claims in this action, including the class action claim for waiting time penalties. (ROA #82.) On 2/10/2023, Defendant filed a notice of appeal of the Court’s order partially denying Defendant’s motion to compel arbitration. (ROA #86.) On 11/8/2024, the Court of Appeal affirmed in part and reversed in part. The appellate court “conclude[d] substantial evidence supports the trial court’s finding that Lopez is a transportation worker within the ambit of section 1’s exemption, following the two-step analysis in <i>Southwest Airlines Co. v. Saxon</i> (2022) 596 U.S. 450, 455–459 (<i>Saxon</i>). Because the FAA is inapplicable, [the appellate court] h[e]ld the individual reimbursement claim under Labor Code section 2802 is arbitrable.” (ROA #129.) Accordingly, the appellate court reversed “[t]he trial court’s order denying Robinson’s motion to compel arbitration as to Lopez’s individual reimbursement claim under Labor Code section 2802” and “remanded to the trial court to enter an order compelling Lopez to arbitrate this claim. In all other respects, the order is affirmed.” (<i>Id.</i>) In the meantime, on 2/28/2023, Plaintiff filed a demand for arbitration with the AAA, but the arbitration was stayed pending the ruling on Defendant’s appeal of the Court’s ruling on the motion to compel arbitration. The parties then agreed to extend the stay pending completion of a second day of mediation. (See ROA #140.) The parties participated in two mediations on 4/2/2024 and on 10/13/2025. (See ROA #145.) On 1/12/2026, the parties reported in a joint statement that they had settled the case. (ROA #150.)
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		On 3/3/2026, pursuant to the parties’ stipulation and the Court’s order, Plaintiff filed the operative first amended complaint, which alleges 4 causes of action, alleging various Labor Code violations and unfair business practices, including a claim for PAGA penalties. (ROA #159.) Per the parties’ settlement agreement, this FAC would include the claims alleged in Plaintiff’s separate PAGA action, and the separate PAGA action would be dismissed without prejudice. On 3/17/2026, the parties filed a joint stipulation to dismiss the separate PAGA action. On 3/30/2026, filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Joint Stipulation of Class and Representative Action Settlement (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$1,160,000. The GSA includes \$116,000 allocated for PAGA penalties. On 7/9/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #178.) Counsel then submitted supplemental materials, including an Amended Joint Stipulation of Class and Representative Action Settlement (“Amended Settlement”) and an amended Class Notice. (ROA #185, Exh. 1.) Based on a review of all papers submitted, including the Amended Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing. However, Class Counsel’s supplemental declaration attests that “[t]he case <i>Elizabeth Wood v. C.H. Robinson Company, Inc.</i>, Case No. C24-03249 (Contra Costa Superior Court, filed November 27, 2024) includes a PAGA claim for failure to pay sick pay against Defendant that may be impacted by the settlement.” (Counsel Supp. Decl., ¶ 12.) Yet counsel failed to provide information on the status of that case and failed to explain how the claims in that case will be impacted by this settlement, as required by this department’s Guidelines for Approval of Class Action Settlements & PAGA Settlements at ¶ I.A.23 (“If any such actions are known to exist, the declaration shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case.”). Therefore, within ten (10) court days, Class Counsel must submit a further supplemental declaration providing the missing information. Upon submission of the missing information, and assuming no additional issues or concerns arise from based upon that information, the Court will grant the Motion. The Motion for Final Approval will be heard on February 25, 2027 at 2:00 p.m. in Department CX102. <i>(The Court notes that counsel proposed February 26, 2027, but the Court hears Law & Motion matters on Thursdays, not Fridays.)</i> All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.
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		At the Final Approval hearing, evidence supporting the request for an award of attorneys’ fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys’ fees award will not be made until final approval, the Court is unlikely to approve attorneys’ fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
112	Jamal vs. DB Global, Inc. 2024-01396853	Motion for Preliminary Approval of Class/PAGA Settlement Plaintiff Rima Jamal’s Motion for Preliminary Approval of Class Action and PAGA Settlement is further CONTINUED to November 5, 2026, at 2:00 p.m. in Department CX102. On 6/11/2026 at the first hearing on this motion, the Court identified various issues for class counsel to address, including (1) various issues with the settlement agreement’s terms, (2) various issues with the proposed class notice and proposed order, (3) the parties’ failure to formally consolidate the PAGA and class action cases as required by the terms of the settlement agreement, and (4) class counsel’s failure to provide a complete valuation analysis. (ROA #83.) In that order, the Court also specified: Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. (<i>Id.</i>) On 9/1/2026, counsel filed a “Second Supplemental Declaration” that attaches a copy of the parties’ amendment to the settlement agreement. (ROA

		#87.) Counsel did not, however, file any brief or declaration explaining how each of the Court’s previous concerns has been addressed or providing any precise citations to any revisions. Nor did counsel provide the Court with any redlines showing the edits made to the proposed class notice or to the proposed order. Nor did counsel provide the Court with the missing valuation analysis. The Court cannot rule on the motion without the necessary supplemental papers to support the motion. Class Counsel must file full supplemental papers addressing all of the Court’s concerns identified in the Court’s 6/11/2026 order—including full of how the pending issues were resolved with precise citation to any revisions, as well as redlines of the class notice and the proposed order—at least 16 court days before the further continued hearing. The Court also issues an Order to Show Cause why the Court should not impose monetary sanctions against Class Counsel for failing to comply with the Court’s 6/11/2026 order as explained above. The hearing is set for November 5, 2026, at 2:00 p.m. in Department CX102. Any response to the OSC must be filed at least 5 court days before the hearing.
113	Smith vs. North American Video Corporation 2022-01277227	Motion for Preliminary Approval of Class/PAGA Settlement Plaintiffs Brendan Smith and Insiyah Haamid’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to November 19, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 8/24/2022, Plaintiff Brendan Smith, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant North American Video Corporation (“NAVCO”). (ROA #2.) On 10/11/2022, Defendant answered the class action complaint. (ROA #15.) Also on 8/24/2022, Plaintiff Smith filed a separate PAGA complaint against Defendant in OCSC Case No. 2022-01277262. That complaint was also filed in the ROA of this case. (ROA #37.) On 10/13/2026, Defendant answered the PAGA complaint. (ROA #46.) On 12/19/2022, the Court entered a stipulated order consolidating the two actions. (ROA #63.) A first amended class action complaint was filed on 11/24/2025 (ROA #218) pursuant to the Court’s order granting Plaintiff Smith’s motion for leave (see ROA #214). The first amended class action complaint adds a new named Plaintiff, Insiyah Haamid, as a class representative and alleging various Labor Code wage-and-hour violations and unfair business practices. (ROA #218.) On 12/29/2025, Defendant answered. (ROA #236.) The parties appear to have engaged in extensive discovery, including depositions of both named Plaintiffs, and also sent out a <i>Belaire-West</i> notice to putative class members on 7/8/2024. (ROA #266 [Counsel Decl.], ¶¶ 18-26.)

On 6/24/2026, Plaintiffs filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Joint Stipulation and Settlement Agreement (“Settlement Agreement”) and proposed Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiffs’ class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$790,000. The GSA includes \$50,000 allocated for PAGA penalties.

The Court has identified a few issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted:

1. The motion’s memorandum of points and authorities only briefly addresses the class certification prerequisites (i.e., ascertainability, numerosity, commonality, typicality, adequacy, and superiority) by stating: “Plaintiff contends, and Defendant does not dispute for settlement purposes only, each of these elements must be present.” (ROA #264, pp. 23.) There is no detailed analysis applying the relevant law to facts to support Plaintiff’s general contention that class certification prerequisites have been met even for settlement purposes. Per this department’s Guidelines for Approval of Class Action Settlements & PAGA Settlements at ¶ 10, the motion “must . . . provide sufficient information and argument for the court to conclude that the class certification prerequisites have been met. See Cal. R. Ct. 3.769; *Amchem Products, Inc. v. Windsor* (1997) 521 U.S. 591, 625-27; *Carter v. City of Los Angeles* (2014) 224 Cal.App.4th 808, 826.”
2. In ¶ 78.15.2, the Settlement Agreement provides that “[a]ll funds associated with the Uncashed Checks shall be tendered to the State of California’s Unpaid Wage Fund, in the name of the Class Member.” However, the Unpaid Wage Fund no longer accepts uncashed checks as a result of private settlement. The provision must be amended to state that such funds will be paid to the State Controller’s Office Unclaimed Property Fund in the names of the applicable payees.
3. Plaintiffs have failed to submit for the Court’s review a [Proposed] Order Granting Preliminary Approval along with the moving papers.

Class Counsel must also provide the Court with a revised Class Notice with the following revisions:

1. The notice should be revised so as to be consistent with the resolution of the issues identified above.
2. On p. 1, the chart of “Your Legal Rights and Options” should include an option for Work Order disputes.
3. Additionally, the chart on p. 1 should include page references to where in the notice more information can be found about each option.
4. Throughout the notice, the placeholder text for response deadlines states only “60 DAYS AFTER MAILING.” This does not account for any extension that may be required for remailed notices per ¶ 78.3.6 of the Settlement Agreement.
5. The notice should state that any Class Member who does not request exclusion may, if the Member so desires, enter an appearance through counsel. (Cal. Rules of Court [CRC], rule 3.766(d)(5).)

		The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. If supplemental papers addressing all of the Court’s concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiffs are ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
114	Mical vs. Prime Healthcare La Palma, LLC 2022-01292457	Case Management Conference The Court would like to hear from the parties regarding the effect of the Barnuevo settlement on this case.
115	Barnuevo vs. Prime Healthcare La Palma, LLC 2021-01223132	Motion to Approve a PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiffs’ Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiffs Maylo Barnuevo, Nelson Basilio, Eric Adrian Estrella, Eric Brian Estrella, Ali Khatatba, Patrick Santiago Lim, Karen Sampson’s Motion for Approval of PAGA Settlement is GRANTED. This is a Labor Code violation case, including a PAGA claim. On 9/24/2021, Plaintiffs Maylo Barnuevo, Nelson Basilio, Eric Adrian Estrella, Eric Brian Estrella, Ali Khatatba, Patrick Santiago Lim, Karen Sampson filed a complaint for Labor Code violations against Defendant Prime Healthcare La Palma LLC. (ROA #2.) On 11/30/2021, Plaintiffs filed a first amended complaint, which included adding a PAGA cause of action. (ROA #9.) The operative complaint is the second amended complaint (SAC), filed on 1/14/2026. (ROA #135.) In the meantime, on 5/2/2022, the parties stipulated to arbitrate Plaintiffs’ claims and to stay this action, “including the PAGA action,” until this matter is

	arbitrated. The Court entered the stipulated order to stay this action on 5/2/2022. (ROA #56.) On 3/20/2026, Plaintiffs filed a notice of related case. (ROA #145.) On 3/25/2026, the Court took notice of <i>Mical v. Prime Healthcare La Palma, LLC</i>, OCSC Case No. 2022-01292457, as a related case. (ROA #149.) On 1/21/2026, Plaintiffs filed the instant Motion to Approve a PAGA Settlement, and submitted for the Court’s review the Joint Stipulation of PAGA Settlement and Release of Claims (“Settlement Agreement”) and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The parties seek the Court’s approval of this settlement while the arbitration of Plaintiffs’ remaining claims is still pending. The motion seeks approval of the parties’ proposed settlement of Plaintiffs’ PAGA claims for the non-reversionary gross settlement amount (GSA) of \$500,000. The settlement applies to the claims of PAGA Aggrieved Employees, defined as “all current and former non-exempt, hourly employees working for Defendant in California at any time between September 21, 2020, through September 10, 2025.” On 6/11/2026, the Court continued the first hearing on the Motion and asked Plaintiffs’ Counsel to address various issues. (ROA #163.) Counsel has submitted supplemental materials, including an Amended Joint Stipulation of PAGA Settlement and Release of Claims (“Amended Settlement Agreement”) and an amended notice/cover letter to aggrieved employees that will accompany the payment to them. Based on a review of all submissions made in support of the Motion, the Court finds the settlement is fair, adequate, and reasonable. The Court previously concluded that an attorneys’ fee award totaling \$166,666.67 or 1/3 of the GSA, constituting a 0.13 multiplier of the lodestar amount based on counsel’s proffered evidence, is fair, adequate, and reasonable for a settlement of this size, including considering the action’s contingent nature and the results achieved. The Court also previously concluded that a litigation cost award totaling \$51,030.09, which is the amount requested in the motion, is supported by counsel’s proffered evidence. Accordingly, the Court approves the following specific awards and disbursements from the GSA: • Attorneys’ fees totaling \$166,666.67 awarded to Plaintiffs’ counsel; • Litigation costs totaling \$51,030.09 awarded to Plaintiffs’ counsel; and • Settlement administration costs of \$6,490.00 awarded to Apex Class Action Administration. PAGA penalties in the amount of \$275,813.24 shall be allocated as follows: seventy-five percent (75%), or \$206,859.93, payable to the Labor and Workforce
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		Development Agency (LWDA); and twenty-five percent (25%), or \$68,953.31, payable to the Aggrieved Employees in accordance with the terms of the Amended Settlement Agreement. Final Accounting is set for November 18, 2027, at 2:00 p.m. in Department CX102. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Aggrieved Employees and all others in accordance with the Settlement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiffs to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
116	2025-01480077 Serrano v. Portermatt Electric, Inc.	Motion for Approval of Settlement Under PAGA Plaintiff Adan Serrano's Motion for Approval of PAGA Settlement is CONTINUED to November 19, 2026, at 2:00 p.m. in Department CX102 in order to give Plaintiff's counsel an opportunity to address the issues identified below. On 5/1/2025, Plaintiff Adan Serrano filed a PAGA complaint against Defendant Portermatt Electric, Inc., alleging a single cause of action for PAGA penalties related to meal period violations, rest period violations, minimum and overtime wage violations, business expense reimbursement violations, sick leave violations, wage statement violations, and untimely payment of final wages. (ROA #2.) On 6/9/2026, Defendant answered. (ROA #14.) On 1/26/2026, the parties attended mediation and negotiated a complete settlement of the claims by accepting the mediator's proposal. (ROA #34.) On 6/5/2026, Plaintiff filed the instant Motion for Approval of PAGA Settlement (ROA #48), and submitted for the Court's review the PAGA Settlement Agreement ("Settlement Agreement") and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of \$240,000. The settlement includes the claims of 311 PAGA Aggrieved Employee, defined as "current or former non-exempt employee[s] that worked for Defendant at any location in California at any time during the PAGA Period." The PAGA Period is 2/25/2024 through 4/27/2026. The Court concludes that an attorneys' fee award totaling \$72,000 or 30% of the GSA, constituting a 0.90 multiplier of the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved.

Further, the Court has identified the following issues with the moving papers, which must be addressed by Plaintiff's counsel before approval can be granted:

1. The Settlement Agreement includes an escalator clause. But this is a motion to have the settlement fully approved, and so a specific GSA must be approved upon the granting of this motion. At this point, the parties should know or be able to determine the number of Aggrieved Employees and qualifying pay periods based on the PAGA Period.
2. The Court requires a more detailed valuation analysis of why the settlement is fair, adequate, and reasonable in light of the strengths and weaknesses of the claims. Although counsel's analysis provides the maximum realistic recovery on each claim asserted in the operative complaint and a summary of the defenses asserted by Defendant and some of the manageability and merits risks, counsel did not include an analysis on the actual discount amounts applied to each claim for any defenses or risks; the adjusted value of each claim after applying any discounts; or an analysis of the GSA as a percentage of the maximum realistic recovery and the risk-adjusted recovery. Also, although the LWDA notice letter and the complaint also allege sick pay violations warranting PAGA penalties, counsel's valuation analysis does not separately address this claim.
3. Counsel's declaration discloses that "Plaintiff entered into as separate and confidential individual settlement and does not request a service award." (Counsel Decl., ¶ 8.) However, Plaintiff has not provided the Court with a copy of his individual settlement agreement. The Court must review Plaintiff's individual settlement agreement as part of evaluating whether the instant settlement is fair, adequate, and reasonable and as part of determining whether and how much to award Plaintiff for any enhancement. Given that Plaintiff's individual settlement agreement is purportedly confidential, Plaintiff's counsel may submit the agreement for the Court review in camera by lodging a copy with the Court before the hearing.
4. Plaintiff's counsel must attest as to whether there is a fee-splitting agreement with any other counsel, or confirm there is none.
5. The Settlement Agreement should specify that the Court's continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6.

Plaintiff's counsel must also provide a revised notice/cover letter to aggrieved employees that will accompany the payment to them, with the following revisions:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.

Plaintiff's counsel must also provide a revised [Proposed] Order Approving PAGA Settlement and Judgment with the following revisions:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.
2. The revised proposed order should also attach amended versions of the settlement agreement and proposed cover letter.

		The Court further refers Plaintiff’s counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Plaintiff’s counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a continuance. If supplemental papers addressing all of the Court’s concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.